

ORIGINAL

FEDERAL MARITIME COMMISSION

GOVERNMENT OF THE TERRITORY
OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, INC.

Docket No. 89-26

Served: January 15, 2004

**ORDER GRANTING MOTION FOR WAIVER OF
PAGE LIMIT REQUIREMENTS FOR FILED
EXCEPTIONS AND OF THE FIVE-DAY ADVANCED
FILING REQUIREMENT**

Rule 227 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.227, governs the filing of exceptions to the decisions and orders of administrative law judges. It provides that all briefs and replies filed pursuant to the rule are subject to a limit of 50 pages unless: (1) the Commission allows parties to exceed the limit for good cause shown; and (2) a motion requesting a waiver of the page limit is filed no later than five days before the date by which the exceptions are due. 46 C.F.R. § 502.227(e).

On December 1, 2003, the Government of the Territory of Guam (“GovGuam”) filed exceptions to the ALJ’s August 29, 2003 Initial Decision, as well as to Orders issued by the ALJ on March 27 and April 16, 2002. GovGuam’s 75-page document exceeded the allowed page limit. On December 10, GovGuam filed a motion requesting a waiver of the 50-page limit, and a waiver of the five-day advanced filing requirement for an extension of the page limit. That motion is now before the Commission.

Prior to filing its motion, GovGuam contacted Respondents’ counsel and obtained express authorization to represent that Respondents have no objection to a page limit extension to 75 pages and to a waiver of the five-day requirement in Rule 227(e). GovGuam Motion at 2. This authorization from Respondents is contingent upon three points, all agreed to by GovGuam: (1) that the new page limit also apply to Respondents’ replies to GovGuam’s exceptions; (2) that Respondents remain entitled to request additional page limit extensions in accordance with the Commission’s Rules, if necessary; and (3) that Respondents’ consent to this motion does not preclude raising objections to Complainants’ exceptions on other grounds. Ibid.

The Commission retains the authority, under Rule 10, to waive its procedural rules “if the expeditious conduct of business so requires.” 46 C.F.R. § 502.10. GovGuam’s request of an additional 25 pages is appropriate given this case’s extensive history and the size of the record, and Respondents’ three contingencies are fair. Pursuant to Rule 10, and in the interest of expediting the progression of this matter, the Commission grants GovGuam’s motion.

THEREFORE, IT IS ORDERED, That the Government of the Territory of Guam's motion requesting a waiver of the 50-page limit requirement for filed exceptions and a waiver of the five-day advanced filing requirement for an extension of the page limit under Rule 227, 46 C.F.R. § 502.227, is granted.

IT IS FURTHER ORDERED, That the page limit for Respondents' replies to exceptions is extended to 75 pages.

By the Commission.

A handwritten signature in black ink, appearing to read "Bryant L. VanBrakle". The signature is fluid and cursive, with the first letters of the first and last names being capitalized and prominent.

Bryant L. VanBrakle
Secretary